

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WENDY SMITH, RASHAWN SMITH,
DESHAWN SMITH, DEWAIN SMITH, TYREEK
PORTER, and JERMAINE HALE,

**SUMMONS WITH
COMPLAINT**

Plaintiffs,

Index No.

-against-

CITY OF NEW YORK P.O. WILLIAM SCHUMAKER,
P.O. JOHN SIKORA, Shield No. 22498 and JOHN and
JANE DOE 1 through 10, individually (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer, or if the complaint is not served with this summons, to serve a notice of
appearance on plaintiffs' attorney, within 20 days after the service of this summons, exclusive of the
day of service, or within thirty 30 days after the service is complete if this summons is not personally
delivered to you within the State of New York.

Plaintiffs designate Kings County as the place of trial.

The basis of venue is the residence of plaintiffs. Plaintiffs reside at: 731 Hegemon Street Apt
7G, Brooklyn, NY 11224. Defendants' address is: 100 Church Street, New York, NY 10007.

NOTICE: This action is to recover damages for injuries to plaintiffs caused by defendants'
intentional and negligent actions. The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined, with interest and the costs of this action.

DATED: April 8, 2019
New York, New York

Robert Marinelli
Wright & Marinelli LLP
305 Broadway, Suite 1001
New York, New York 10007
(212) 822-1427

Attorney for Plaintiffs

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WENDY SMITH, WENDY SMITH as Mother and
Guardian of Z.P. and A.P., DESHAWN SMITH,
DEWAIN SMITH, TYREEK PORTER, and
JERMAINE HALE,

COMPLAINT

Index No.

Jury Trial Demanded

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. WILLIAM SCHUMAKER,
P.O. JOHN SIKORA, Shield No. 22498 and JOHN and
JANE DOE 1 through 10, individually (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

Defendants.

----- X
Plaintiffs WENDY SMITH, RASHAWN SMITH, DESHAWN SMITH, DEWAIN
SMITH, TYREEK PORTER, and JERMAINE HALE, ("collectively, "Plaintiffs") by their
attorney, Robert Marinelli, Esq., complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages, and
attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of their civil rights, as said
rights are secured by said statutes and the Constitution of the United States.

JURISDICTION AND VENUE

2. The cause of action arose within Kings County, within the State of New York.
3. Each Plaintiff is a resident of Kings County.

PARTIES

4. Each Plaintiff is a resident of Kings County.

5. Wendy Smith ("Wendy") is the mother of Deshawn Porter ("Deshaun"), Tyreek Porter ("Tyreek"), minors A.P. and Z.P. Dewain Smith ("Dewain") is Wendy's brother and Jermaine Hale ("Jermaine") is Dewain's friend.

6. Defendant CITY OF NEW YORK ("City") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. Defendant CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, William Schumaker, John Sikorski, and JOHN AND JANE DOE 1 through 10 (collectively, the "Defendants"), were duly sworn officers of the NYPD and were acting under the supervision of the NYPD and according to their official duties.

9. That at all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State of New York and/or the City of New York.

10. Each and all of the acts of the Defendants alleged herein were committed by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

STATEMENT OF FACTS

11. On March 24, 2017, plaintiffs were all present 731 Hegemon Avenue, apartment nine,

in Brooklyn, New York. Wendy, Deshaun, Tyreek, Z.P., A.P., and Dewain are residents, Jermaine was a visitor.

12. At approximately 11:45 P.M. Defendants knocked loudly on the plaintiffs' door. Wendy went to investigate the cause of the commotion. When Wendy opened the door, Defendants insisted that Wendy allow them entrance.

13. Wendy told the Defendants that they would need a warrant. The defendants ignored her and pushed their way into the residence.

14. Upon defendants' entrance, plaintiffs were awoken, handcuffed and removed from their beds, and placed them in the living room.

15. While in the living room Z.P. was pushed face first into a couch while his arm was violently pulled behind his back.

16. A.P. and Deshawn were both thrown to the ground and struck multiple times about their face and body.

17. Tyreek was placed in excessively tight handcuffs. His pleas to have his cuffs loosened were ignored.

18. While this was occurring, other defendants began ransacking the apartment. Defendants did not know the cause of this invasion. The defendants claimed to have heard a gunshot provoking their entrance.

19. Plaintiffs were each arrested and taken to the 75th precinct. Z.P. and A.P. were nether wearing shoes or a shirt when they were taken to the police vehicle.

20. Plaintiffs each remained at the precinct for over two days.
21. Z.P. and A.P., minors, were not placed in the cell. They were handcuffed to chairs for the two days they were at the precinct.
22. Z.P. and A.P. were then taken to a juvenile detentions center.
23. The other plaintiffs were taken to Brooklyn Central Booking.
24. After over three days in custody, Wendy, Tyreek, Jermaine and Dewain were released.
25. Z.P. and A.P. were not released from the juvenile detention center until approximately five days after their arrest.
26. Upon release, Z.P and A.P. were not allowed to return home, and were placed with their aunt.
27. All of the above occurred as a direct result of the unconstitutional policies, customs, and practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.
28. The aforesaid is not an isolated incident, defendant City is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau and the CCRB) that many NYPD officers, including the defendants, are insufficiently trained, supervised, and disciplined regarding: reporting misconduct of other officers; the use of excessive force; searching individuals and their private property; and seizing individual's personal property including cellular used to record police conduct.
29. Moreover, upon information and belief, defendant City was aware, prior to the

incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant City has retained these officers, and failed to adequately train and supervise them.

30. Defendant City is further aware that such improper supervision and training has often resulted in a deprivation of civil rights. Despite such notice, defendant City has failed to take corrective action. This failure caused the officers in the present case to violate plaintiffs' civil rights.

31. All of the aforementioned acts of defendants, their agents, servants, and employees were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiffs of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. As a result of the foregoing, plaintiffs sustained, *inter alia*, physical and psychological injuries, pain, and mental anguish, emotional distress, embarrassment, humiliation, and deprivation of his liberty and constitutional rights.

37. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C. § 1983)

38. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

39. Defendants, by their conduct toward plaintiffs alleged herein, violated plaintiffs rights' guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

40. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest)

41. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

42. Defendants arrested plaintiffs without probable cause, causing them to be detained

against their will for an extended period of time and subjected to physical restraints.

43. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

44. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

45. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Unreasonable Search)

46. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

47. Defendants unreasonably searched plaintiffs thereby causing plaintiffs to suffer emotional distress, embarrassment, humiliation, and loss of privacy.

48. Defendants violated the Fourth and Fourteenth Amendments due to their unreasonable search.

49. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Excessive Force)

50. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

51. The level of force employed by defendants was excessive, objectively unreasonable, and otherwise in violation of plaintiff's constitutional rights.

52. As a result of the aforementioned conduct, plaintiff was subjected to excessive force and sustained physical injuries, pain and mental anguish, and emotional distress.

53. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Excessive Detention)

54. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

55. As a result of Defendants' acts and omissions described herein, plaintiffs were detained without lawful excuse or justification for an excessive period of time.

56. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual

defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure to Intervene)

57. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

58. Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

59. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth and Fourteenth Amendments.

60. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Municipal Liability)

61. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective

municipality/authority, which is forbidden by the Constitution of the United States.

63. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included, but were not limited to, police officers: failing to report misconduct of other officers; using excessive force against individuals; unlawfully searching individuals; and unlawfully seizing an individual's personal property.

64. In addition, the City engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of the City to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

65. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of plaintiffs.

66. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

67. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

68. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the City and NYPD, plaintiffs were subjected to excessive force and he was unlawfully arrested.

69. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs' constitutional rights.

70. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

- a. To be free from false arrest/unlawful imprisonment;
- b. To be free from unreasonable search and seizure;

71. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs demand judgment and prays for the following relief, jointly and severally, against the defendants:

- A. full and fair compensatory damages in an amount to be determined by a jury;
- B. punitive damages against the individual defendants in an amount to be determined by a jury;
- C. such other and further relief as appears just and proper

DATED: April 7, 2019
New York, New York



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Attorney for Plaintiffs